

The Agency for the Protection of Personal Data has imposed an administrative fine on the data controller – a telecommunications company in the amount of 20,000.00 euros for violating Article 6, paragraph 1 of the General Data Protection Regulation, in connection with Article 5, paragraph 1, point d) of the General Data Protection Regulation. Specifically, the data controller unlawfully processed (retained) the personal data of the data subject after the termination of the contractual relationship due to the failure to maintain up-to-date and accurate data, that is, due to the lack of measures for regular verification of the accuracy and up-to-dateness of the personal data of the data subject.

Namely, the Agency received a request for the determination of a violation of the right to the protection of personal data in which the applicant (hereinafter referred to as the data subject) stated that her personal data is being processed by the telecommunications company, even though the data subject has not been their user for more than ten years. The information that her personal data is still being processed came to the data subject's attention during a notification of a security incident that she received from the telecommunications company, and this was confirmed to her by the customer service.

In the proceedings, it was established that the telecommunications company, after the inquiry from the data subject, learned that it was still processing her personal data, all due to the fact that the data controller had, for unknown reasons, linked the existence of a non-existent debt to the data subject, which is why the computer system did not allow the deletion of personal data until the non-existent debt was manually canceled. Consequently, the data controller unlawfully processed the personal data of the data subject from the contractual relationship by retaining personal data without a legal basis under Article 6, paragraph 1 of the General Data Protection Regulation after the expiration of 12 months from the termination of the contractual relationship.

Furthermore, the Agency has so far imposed 29 administrative fines in the total amount of 810,656.57 EUR for various violations of the provisions of the General Data Protection Regulation and the Law on the Implementation of the General Data Protection Regulation.